



# GOVERNANCE

## STATUTORY, REGULATORY, QUASI-JUDICIAL BODIES

**MODULE - 21**



## STATUTORY BODIES

- 1** Statutory bodies are those entities that are created by an Act of Parliament or State Legislatures.
- 2** They are set up by the respective governments to consider the evidence and make judgments in some field of activity.
- 3** They are usually established to carry out specific functions which a government considers may be more effectively performed outside a traditional departmental executive structure.
- 4** They fulfil the need for some operational independence from the government funding arrangements that are not reliant on the annual appropriations processes or to establish a separate legal entity.





## STATUTORY BODIES

**5** They are typically found in countries which are governed under Parliamentary Democracy form of political setup.

**6** By law, statutory bodies function as organizations with the authority to keep an eye on the legal and official compliances of a business or an organization.

**7** For instance, the Medical Council of India is a statutory body which regulates the quality of medical education and medical practitioners in India.

**8** Statutory bodies, however, may be established to allow a certain level of independence from the government, the government is still responsible to ensure that taxpayers funds expended in the operations of statutory bodies are spent in the most efficient, effective and economic manner.





## STATUTORY BODIES

9 These bodies may be subject to varying degrees of ministerial control, depending on the acts that give rise to their existence.

10 In turn, ministers are responsible to the Parliament and state legislatures for the operation of all government boards and agencies within their portfolios and are required to table their annual reports before the respective houses.



## REGULATORY BODY

**1** A Regulatory body or Regulatory agency is a public authority or a Government agency, responsible for exercising autonomous authority over some area of human activity in a regulatory or supervisory capacity, established by Legislative act in order to set standards in a specific field of activity, or operations, in the private sector of the economy and to then enforce those standards.

**2** Regulatory agencies function outside executive supervision.

**3** Because the regulations that they adopt have the force of law, part of these agencies' functions is essentially legislative.

The logo for the Food Safety and Standards Authority of India (FSSAI) features the word 'fssai' in a stylized, lowercase font. The 'f' and 's' are blue, while the 'a' and 'i' are orange. A green leaf is positioned above the 'i'.

**National Highways Authority  
of India**



## REGULATORY BODY

4 But because they may also conduct hearings and pass judgments concerning adherence to their regulations, they also exercise a judicial function-often carried out before a quasi-judicial official called an administrative law judge, who is not part of the Court system.

5 In almost all other countries outside the USA, including India, the role of regulatory agencies is taken by the regular administrative departments of government and in the case of utilities and public transportation, often by means of state ownership.

6 Regulatory agencies are usually a part of the executive branch of the government, or they have statutory authority to perform their functions with oversight from the legislative branch.

7 Their actions are generally open to legal review.



## REGULATORY BODY

8 Regulatory authorities are commonly set up to enforce standards and safety, or to oversee use of public goods and regulate commerce.

9 Examples of regulatory agencies in India are IRDA, SEBI, TRAI, AERB, DGCA, PESO, etc.



Directorate  
General of  
Civil  
Aviation



Telecom Regulatory  
Authority of India





## QUASI-JUDICIAL BODIES

**1** Quasi-judicial bodies are organizations or bodies which have powers similar to that of the law imposing bodies but they are not courts. They mainly govern the administrative areas.

**2** The courts (judiciary) have the power to preside over all kinds of disputes but the quasi-judicial bodies are the ones with the powers of imposing laws on administrative agencies.

**3** These bodies help in reducing the burden of court. Quasi-judicial activity is limited to the issues that concern the particular administrative agency. These actions may be appealed in a court of law.





## QUASI-JUDICIAL BODIES

- 4 Such bodies usually have powers of adjudication in matters such as breach of discipline, conduct rules and trust in the matters of money or otherwise.
- 5 Their powers are usually limited to a particular area of expertise, such as financial markets, employment laws, public standards, immigration, or regulation.
- 6 Awards and verdicts of quasi-judicial bodies often depend on a pre-determined set of guidelines or punishments depending on the nature and gravity of the offence committed.
- 7 Such punishments may be legally enforceable under the law of a country. However, they can also be challenged in a court of law, which is the final decisive authority.





## QUASI-JUDICIAL BODIES

8

Some examples of quasi-judicial bodies in India are

- National Human Rights Commission
- State Human Rights Commission
- Central Information Commission
- State Information Commission
- National Consumer Disputes Redressal Commission
- State Consumer Disputes Redressal Commission
- Competition Commission of India
- Appellate Tribunal for Electricity
- Railway Claims Tribunal
- Income Tax Appellate Tribunal
- Intellectual Property Appellate Tribunal.



भारतीय प्रतिस्पर्धा आयोग  
Competition Commission of India





WE EXPRESS OUR  
SINCERE THANKS  
FOR VIEWING THIS VIDEO

Presented by

---



Learning Space

**For Suggestions:**

[suggestions@learningspace.in](mailto:suggestions@learningspace.in)

**To Contact us:**

[info@learningspace.in](mailto:info@learningspace.in)

**For Information:**

[info.learningspacedigital@gmail.com](mailto:info.learningspacedigital@gmail.com)

**Visit us at:**

[www.learningspacedigital.com](http://www.learningspacedigital.com)

0866 244 44 72

98499 42299

94415 27588